

Plaintiff's opposition declaration claims that on October 2, 2025, via email he sent written notice of his claims against the county "by email to the civil division of the Solano County Superior Court . . . , with a copy to the Clerk of the Board of Supervisors . . . " which "included a detailed formal complaint describing the workplace harassment, retaliation, discrimination, and constructive discharge I experienced while employed with the County of Solano General Services Department, along with the names of the responsible parties", and received from the Board of Supervisors "an automated acknowledgement confirming my correspondence had been received and forwarded to the appropriate office for review".

The declaration attached a copy of an email Plaintiff claims to have sent to the Board of Supervisors (and the court) to accompany what he called a Board of Supervisors complaint letter. But no copy of that "detailed letter" was attached anywhere to Plaintiff's declaration.

Even if the detailed letter had been attached, per the County's website instructions for presenting a government claim, email transmission of it to the Board of Supervisors may not have been sufficient, nor did Plaintiff wait for the claim to be rejected or deemed rejected before filing the complaint (as the letter was sent only about a week before the filing of the complaint).

While it is not clear to the court that Plaintiff can successfully allege facts sufficient to show compliance with or excuse from the government claims presentation requirement, in an abundance of caution, the court sustains GS's demurrer to these three non-FEHA causes of action, with 30 days leave to amend.

Thus, the court sustains GS's demurrer to the entirety of Plaintiff's complaint, with 30 days leave for Plaintiff to file a first amended complaint, to reallege any or all of the FEHA causes of action and the non-FEHA causes of action.

FRANCISCO ARRIAGA; ET AL. vs. SUTTER VALLEY HOSPITALS; ET AL.
Case No. CU25-09439

SUTTER SOLANO's Demurrer to First Amended Complaint

TENTATIVE RULING

Defendant SUTTER VALLEY HOSPITALS d.b.a. SUTTER SOLANO MEDICAL CENTER ("SUTTER SOLANO") demurs to the fourth cause of action, for dependent adult neglect, within Plaintiffs FRANCISCO ARRIAGA and ARACELI ARRIAGA's first amended complaint. Summarized, Plaintiffs allege that their son Roberto Carlos Arriaga Soria ("Decedent") went to SUTTER SOLANO's emergency room on October 14, 2024, nude and suffering from hypoglycemia, hypothermia, and an altered mental state. SUTTER SOLANO did not perform appropriate diagnostic tests on Decedent and

did not discover his head injuries. SUTTER SOLANO discharged Decedent after monitoring him for about five hours; Decedent died a matter of hours later.

Legal Standard on Demurrer. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis. *Kruthanooch v. Glendale Adventist Medical Center* (2022) 83 Cal.App.5th 1109 (*Kruthanooch*) speaks directly to the situation before the court. In *Kruthanooch* a patient presented to an emergency room with weakness and lightheadedness, and a history of coronary artery disease, hypertension, hyperlipidemia, and diabetes. (*Id.* at p. 1116.) The hospital staff left ECG pads on the patient when he underwent an MRI, causing him a burn on his abdomen. (*Id.* at pp. 1116-1117.) The patient was admitted to the hospital and given IV fluids and 24-hour cardiac monitoring; he was discharged two days later. (*Id.* at pp. 1117-1118.) The patient asserted civil claims against the hospital notably including one for elder abuse, based on the MRI burn. (*Id.* at p. 1118.) Though the jury found for the patient on the elder abuse claim, the trial court granted a motion for judgment notwithstanding the verdict on the grounds that the hospital did not have a caretaking or custodial relationship with the patient. (*Id.* at p. 1119.) The Second District Court of Appeal held this correct. (*Id.* at p. 1122.) The California Supreme Court has held that the Elder Abuse and Dependent Adult Civil Protection Act requires a caretaking or custodial relationship to exist between a plaintiff and defendant, meaning a robust relationship featuring significant ongoing responsibility for one or more basic needs that a fully competent adult could handle alone. (*Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152 (*Winn*).) With this in mind the *Kruthanooch* court found that there was no caretaking or custodial relationship in the case under analysis as the hospital had a relationship with the patient for only a very limited duration and provided for his needs only incidentally to circumscribed medical care. (*Kruthanooch* at p. 1128.) There was no evidence that the patient, ill though he was, needed any help with basic functions. (*Id.* at pp. 1128-1129.) He was in the hospital’s care for only two days. (*Id.* at p. 1129.) This was not an “ongoing,” “robust” caretaking relationship of “significant” responsibility.” (*Ibid.*) No one explicitly assumed responsibility for the patient’s basic functions. (*Ibid.*)

Decedent in the instant case was likewise only in SUTTER SOLANO’s care for a very brief amount of time – a matter of hours, not even the couple of days of *Kruthanooch* – and was given basic care only incidentally to emergency room treatment. Plaintiffs’

arguments that a caretaking relationship was formed because Decedent was given clothes and a warm room to occupy are too general. Any hospital will give a naked patient a hospital gown. A hospital cannot help but have its patients be indoors, too. The argument that SUTTER SOLANO assumed responsibility for Decedent's care because it monitored his vital signs is likewise unavailing because it attempts to impose a caretaking relationship on routine, universal emergency room activities. Further, Plaintiffs allege that SUTTER SOLANO did precisely the opposite of assuming responsibility for Decedent's needs where its staff marked him for referral to social services. (1AC at ¶ 25.) Even acknowledging the allegations of Decedent's altered mental state the fact remains that SUTTER SOLANO did not care for Decedent's basic needs in any but the most minimal and incidental ways for any but the most fleeting and insignificant time. Plaintiffs do not state a cause of action for dependent adult neglect on account of failure to state a caretaking or custodial relationship.

Leave to Amend. Leave to amend is appropriate where pleading deficiencies are amenable to correction. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to demonstrate a possibility that identified defects could be corrected by amendment. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.) Plaintiffs do not offer a directed argument as to amendment, only requesting leave to amend without demonstration of what additional facts they could allege that would cure identified defects.

Conclusion. SUTTER SOLANO's demurrer to the fourth cause of action in the first amended complaint is sustained without leave to amend.

ELAINE SCIACCA and KK&G INC. vs. AHMED ALSHERIF
Case No. CU26-02679

Anti-SLAPP Motion

TENTATIVE RULING

On the Court's own motion, the hearing will be continued. The Parties are to address what consideration, if any, should be given to the pending writ before the Court of Appeal in selecting new hearing date.

CLAUDIA GONZALEZ vs. MEYER CORPORATION U.S. and DIEGO PEREZ
Case No. FCS058246

Plaintiff's Motion to Conduct Discovery of MEYER's Financial Condition

TENTATIVE RULING